

VeridianBank European Data Breach

Biometric and financial data breach · ICO, CNIL and BaFin enforcement

PLATFORM	DOCUMENTS	DATE RANGE
Everlaw	510 · 497 emails, 7 memos, 4 attachments, 2 contracts	January 10, 2021 – December 26, 2024

Training matter. The parties, events and documents are fictional and exist for AA Team review practice.

1 Matter overview

VeridianBank PLC suffered a breach of 4.2 million customer records, including biometric authentication templates, financial data and health-linked transaction data. Three European regulators are investigating: the ICO (UK), the CNIL (France) and BaFin (Germany). A class action on behalf of up to 4.2 million data subjects is pending.

Everlaw's coding fields differ from Relativity's, and privilege is labelled in UK terms. Learn the GDPR issue tags before you start.

2 Parties and custodians

ROLE	NAME
CEO	Edmund Walsh
CISO	Priya Sharma
General Counsel	Harriet Okafor
CTO	Marcus Bell
CHRO	Sandra Fox
Data Protection Officer	Kemi Ade
Regulator correspondence	ICO incident team

3 Coding fields on Everlaw

These are the values the coding panel offers. Every document gets all five fields, and all five are graded.

FIELD	VALUES
Responsiveness	Responsive · Non-Responsive
Privilege	Not Privileged · LPP (ACP) · LPP + WP
Issues	Select every issue that applies
Action	Produce · Withhold
Confidentiality	Standard · Highly Confidential · Attorneys Eyes Only

4 How to code

IF THE DOCUMENT IS...	RESPONSIVENESS	PRIVILEGE	ACTION	CONFIDENTIALITY
Not responsive to any request	Non-Responsive	Not Privileged	Withhold	Standard
Responsive, with no legal advice in it	Responsive	Not Privileged	Produce	Highly Confidential or Standard (see 8)
Responsive, and carries legal advice from counsel	Responsive	LPP (ACP)	Withhold	Attorneys Eyes Only
Responsive, and counsel's advice or analysis was prepared because of the investigation or litigation	Responsive	LPP + WP	Withhold	Attorneys Eyes Only

- Anything that is not going out is withheld, so a non-responsive document is withheld just as a privileged one is. It is the same rule on every platform in the AA Team program.
- Issues go on responsive documents only. A non-responsive document never carries an issue.
- Every privileged document is withheld and designated Attorneys Eyes Only. No exceptions in this matter.
- Escalate and Redact are on the panel but are never the correct final call in this matter. If you are unsure, escalate (section 10); do not submit a placeholder.

5 Issue tags

#	ISSUE	DEFINITION	WHAT TO LOOK FOR
1	Art.32 Security Failure	Inadequate technical and organisational security measures.	Biometric data stored in plaintext; the vendor MFA gap; penetration-test findings left unremediated.
2	Art.33/34 Notification	Late or inadequate breach notification.	The 72-hour clock starting at 01:14 AM; the CEO's instruction to delay; notification at 112 to 125 hours; misleading Art. 34 language to data subjects.
3	Art.9 Special Data	Special-category data and the higher protection it requires.	The 4.2 million biometric templates; the 341,000 health-linked records.
4	Whistleblower PIDA	Retaliation against the CISO.	The CISO's termination 7 days after her ICO submission; the performance plan opened the week of the breach; the PIDA claim.

6 Attorney and law-firm screen

A name on this list does not make a document privileged. It tells you to read closely for legal advice.

NAME	ROLE	FIRM / DOMAIN
Harriet Okafor	General Counsel, VeridianBank	In-house
James Vickers	Partner	Allen & Overy LLP · allenandoverly.com
Employment Team	Outside counsel	Allen & Overy LLP

7 Privilege

- UK legal professional privilege (LPP) is the equivalent of attorney-client privilege. Counsel's advice on GDPR compliance strategy is LPP (ACP).
- Use LPP + WP when counsel's advice or analysis was prepared because of the regulatory investigation or the litigation.

- GDPR Art. 38 requires the DPO to be independent. Communications to or from the DPO may not be privileged: judge them by whether counsel's legal advice is being sought or given.
- Regulator correspondence (ICO, CNIL, BaFin) is never privileged.

8 Confidentiality

DESIGNATION	USE IT FOR
Attorneys Eyes Only	Every withheld privileged document.
Highly Confidential	Internal deliberation during the notification delay, including draft notifications. The review of biometric data retention. Personnel records about the CISO, such as performance reviews and advice on her termination. Internal communications that show what the bank knew.
Standard	Security assessments, access-control audits and infrastructure remediation records. Notification status updates and DSAR figures. Scheduling and correspondence with the ICO and other regulators. Every non-responsive document.

These categories come from how the matter is graded. The call follows the content: not the custodian, and not how many issues a document hits.

9 Matter alerts

Special category data

Any document containing biometric template data, health data or genetic data is Art. 9 special-category data. Apply heightened protection, and code it Issue 3 as well as any other issue that applies.

10 Escalation and the QC standard

STEP	WHO	WHEN
1	Glory or Junior	Your first go-to for every question.
2	Zabron or Simon	If Glory and Junior are unavailable or need backup.
3	Aaron	If it is still unclear after steps 1 and 2.
4	PM / RM	If Aaron has no clear answer, or the question is client-level.

- Never guess silently on a gray area. While you wait for an answer, protect the document: treat it as privileged and do not release it.
- Ask a good question: the document ID; short context (who is writing to whom, about what); your lean and why; and what makes it difficult.

QC TRACK STANDARD	
Accuracy	Measured as defects per 1,000 documents. The target is zero. One defect per thousand still scores 95.
Pace	60 documents per hour, sustained, done properly.
Responsiveness	Reply to supervisor messages within 2 minutes while on shift.
The rule that outranks the others	Never trade privilege accuracy for speed.